THE UNIVERSITY OF PHOENIX, INC.

Internal Revenue Code Section 127
Educational Assistance Plan
(as Amended and Restated Effective February 7, 2022)

ARTICLE I
Plan Intent

The University of Phoenix, Inc. and its Affiliates (the "**University**" or the "**Company**") has established this Educational Assistance Plan (the "**Plan**") for the exclusive benefit of eligible Employees and Associate Faculty. The purpose of this Plan is to provide Educational Assistance Benefits to eligible Employees and Associate Faculty for educational courses offered by the University. Eligible Employees also may be reimbursed for tuition costs at non-Company universities, provided that certain criteria are met as set forth below.

This Plan is intended to meet the requirements for qualification under Internal Revenue Code Section 127 ("**Code Section 127**"), and it is intended that the benefits provided to Employees and Associate Faculty under the Plan be excludable from the Employee's or Associate Faculty's gross income to the greatest extent possible. The University also maintains an Internal Revenue Code Section 117 ("**Code Section 117**") Qualified Tuition Plan. An expense will not be eligible for payment or reimbursement under this Plan if the expense is excludable under Code Section 117 and available under the Qualified Tuition Plan.

ARTICLE II
Definitions

2.1 "**Affiliates**" means any member of an affiliated group (within the meaning of Code Section 1504(a)) with the University.

2.2 "**Associate Faculty**" means a member of the teaching faculty of the University who is employed as a teaching professional in the United States (excluding territories of the United States) and who is in good standing with the University (as determined by the University's applicable policies).

2.3 "**Code**" means the Internal Revenue Code of 1986, as amended.

2.4 "**Course Re-take**" means a course that an Employee or an Associate Faculty has completed and received a final grade (whether A – F or P/F, as applicable) for which the Employee or Associate Faculty has determined to repeat or take a substantially similar course.

2.5 "**Direct Costs**" means the per course tuition cost plus the cost of books, course materials, and any associated fees, minus any applicable tuition reduction provided under the provisions of this Plan, owed by a Participant.

2.6 "**Directed Study**" means a course that is delivered by a member of the teaching faculty of the University to five or fewer students.

2.7 "**Educational Assistance Benefits**" means (i) the payment, by the University, of educational expenses incurred by or on behalf of eligible Employees and Associate Faculty for education of those Employees and Associate Faculty (including, but not limited to, tuition, fees, fees for Professional Development Courses offered by the University, and similar payments, books, supplies, and equipment) and (ii) the provision, by the University, of courses of instruction for such Employees and Associate Faculty (including books, supplies, and equipment). For purposes of this Plan, Educational Assistance Benefits is the total reduction in tuition costs provided to Employees and Associate Faculty pursuant to an approved Tuition Assistance Application provided

under the Plan and the discount offered pursuant to the Tuition Discount Policy. Educational Assistance Benefits also includes reimbursement for a portion of the tuition costs of an undergraduate or graduate class or program at a non-Company university.

2.8 "**Employee**" means an individual who is reported on the payroll records of the University as a regular (i.e., not temporary) Employee of the University who is regularly scheduled to work at least twenty (20) hours per week and is employed in the United States (excluding territories of the United States) but does not include an individual employed solely as an Associate Faculty. In the event that an individual qualifies as both an Employee and an Associate Faculty, the individual will be treated solely as an Employee for purposes of this Plan.

"**Employee**" also includes a former Employee who is part of a group of Employees terminated (i) in connection with a Reduction in Work Force (as defined in The University of Phoenix, Inc. Severance Pay Plan or The University of Phoenix, Inc. Senior Executive Severance Pay Plan, together, the "**Severance Plans**") or (ii) as a result of Outsourcing (as such term is defined in the Severance Plans) (even if offered employment by a third-party vendor), in each case, if selected by the University's Senior Vice President, Chief Human Resources Officer ("**SVP, CHRO**") for participation in this Plan, for a limited period following such former Employee's termination of employment. Notwithstanding the foregoing, no group of former Employees may be designated for participation if inclusion of such group in the Plan would cause the Plan to violate the nondiscrimination requirements of Section 9.3 of the Plan.

2.9 "**Participant**" means, collectively, Employees and Associate Faculty, as well as former Employees who are eligible for Educational Assistance Benefits in accordance with Section 2.8.

2.10 "**Plan**" means The University of Phoenix, Inc. Internal Revenue Code Section 127 Educational Assistance Plan.

2.11 "**Plan Administrator**" means the University or such officer or Employee of the University as shall be designated by the Board of Trustees of the University.

2.12 "**Plan Year**" means the 12-month period commencing January 1 and ending on December 31.

2.13 "**Professional Development Course**" means a non-credit bearing course offered by the University that is short, skills-focused, self-paced, and career-relevant. A Professional Development Course provides a certificate of completion but does not provide any professional development units (PDUs) or credit (CEUs) from the University. Federal financial aid cannot be used to pay any expenses associated with Professional Development Courses.

2.14 "**Qualified Tuition Plan**" means The University of Phoenix, Inc. Internal Revenue Code Section 117 Qualified Tuition Plan.

2.15 **"Tuition Allowance"** is the amount of the tuition assistance, if any, in excess of the tuition discount for Employees and Associate Faculty provided by the University pursuant to this Plan.

2.16 "**Tuition Discount Policy**" means the then-applicable tuition or fee discount rate, if any,

offered by the University to current Employees and Associate Faculty.

2.17 "**University**" or "**Company**" means The University of Phoenix, Inc. and any other Affiliate of the University at which an Employee or Associate Faculty can receive "qualified tuition reductions" under Section 117 of the Code.

2.18 "**Withdraw**" or "**Withdrawal**" means a course, other than Professional Development Courses, an Employee or Associate Faculty has dropped before completion and without earning a final grade (whether A – F or P/F, as applicable).

ARTICLE III
Eligibility and Educational Assistance Benefits at the University

3.1 Educational Assistance Benefits for graduate courses, degree and non-degree programs, and certificate programs (including Directed Study), excluding Professional Development Courses, are provided under the terms of this Plan in accordance with the table below. Participants are responsible for the payment of the remaining tuition amount that is due, if any, after applying the Educational Assistance Benefits set forth in the table below to the tuition rate that is charged to the general public for the same graduate course, degree or non-degree program, or certificate program (including Directed Study), as well as any Direct Costs.

Group	Eligibility (1)	Educational Assistance Benefits
Employees	Immediately upon most recent hire date	100%
Associate Faculty	Immediately upon most recent hire date	50%

(1) Course or program must begin after the Employee or Associate Faculty becomes eligible to participate in the Plan.

3.2 Educational Assistance Benefits for doctoral programs are provided under the terms of this Plan in accordance with the table below. Participants are responsible for the payment of the remaining tuition amount that is due, if any, after applying the Educational Assistance Benefits set forth in the table below to the tuition rate that is charged to the general public for the same doctoral program, as well as any Direct Costs.

Group	Eligibility (1)	Educational Assistance Benefits
Employees	Immediately upon most recent hire date	75%
Associate Faculty	Immediately upon most recent hire date	50%

(1) Course or program must begin after the Employee or Associate Faculty becomes eligible to participate in the Plan.

3.3 Educational Assistance Benefits for Professional Development Courses are provided under the terms of this Plan in accordance with the table below. Participants are

responsible for the payment of the remaining fee amount that is due, if any, after applying the Educational Assistance Benefits set forth in the table below to the fee that is charged to the general public for the same Professional Development Course.

Group	Eligibility (1)	Educational Assistance Benefits
Employees	Immediately upon most recent hire date	40%
Associate Faculty	Immediately upon most recent hire date	20%

(1) Course must begin after the Employee or Associate Faculty becomes eligible to participate in the Plan.

3.4 No Educational Assistance Benefits for a course or program, excluding any Professional Development Course(s), will be provided until an Employee or an Associate Faculty has submitted a Tuition Assistance Application and any required supporting documentation and obtained the necessary approvals from the appropriate University personnel. Employees and Associate Faculty should not enroll in a course(s) or program until they have received notification that the Tuition Assistance Application has been approved. For the avoidance of doubt, an Employee or Associate Faculty may purchase a Professional Development Course and receive any applicable discount under the Plan without submitting and receiving approval of a Tuition Assistance Application.

3.5 No Educational Assistance Benefits will be provided to an Employee or an Associate Faculty for a course, excluding Professional Development Courses, which an Employee or an Associate Faculty purchased prior to their termination date and fully paid all costs required in excess of Educational Assistance Benefits provided by the University, that is scheduled to begin after a termination of employment for any reason, except as provided in Section 2.8. An Employee or Associate Faculty who resigns or is terminated other than for Cause (as defined in the Severance Plans), or who otherwise ceases to be eligible to receive Educational Assistance Benefits under the Plan, is not required to reimburse the University for the value of any Educational Assistance Benefits provided under the Plan for a course that was completed prior to, or in progress at the time of, such resignation, termination, or cessation of eligibility for any other reason, except as provided in Section 4.2. In the event that a terminated Employee or Associate Faculty Withdraws from a course that is in progress at the time of such termination, such terminated Employee or Associate Faculty will be responsible for paying the full tuition cost of such course plus any associated fees, per the University's Institutional Refund Policy as stated in the Consumer Information Guide.

3.6 Any Directed Study will be subject to the University's policies with respect to Directed Study programs. No course(s) in certificate programs comprised of three (3) or fewer courses may be completed via Directed Study. A maximum of one (1) course in a credit-bearing program that is comprised of at least four (4) courses may be completed via Directed Study. A Participant may be responsible for any Directed Study fee depending on the campus and modality.

3.7 The maximum number of simultaneous classes, excluding Professional Development Courses, Employees and Associate Faculty may take is subject to the programmatic requirements in the relevant University policy.

3.8 Any tuition amounts and/or fees, including the cost of books and/or course materials, as well as any Directed Study fees, if applicable, must be paid by a Participant before attending the first class of any course or program in which a Participant has enrolled. To the extent the cost of materials is included in a tuition rate, the materials will be charged to the Participant, and any Educational Assistance Benefits will be applied to the tuition rate excluding the cost of materials. No payment or provision is provided under this Plan for tools or supplies that an Employee or Associate Faculty may retain after a course or program has ended. No payment or provision is provided under this Plan for meals, lodging, and transportation that are associated with an Employee's or Associate Faculty's coursework.

3.9 Employees and Associate Faculty will not be eligible to receive Educational Assistance Benefits (except for any fee discount offered under this Plan for Professional Development Courses) under the Plan if one or more of the following circumstances apply, in each case, unless determined otherwise by the Plan Administrator in its sole and absolute discretion:

a) an Employee or Associate Faculty is on University academic sanction, including academic or scholastic disqualification, suspension, dismissal, or expulsion;

b) an Employee or Associate Faculty receives federal financial aid that exceeds the amount of the Participant's Direct Costs;

c) an Employee or Associate Faculty has failed to fulfill the financial responsibilities as provided in Article V of the Plan or has committed any fraudulent acts in applying for Education Assistance Benefits under this Plan, tuition benefits under the Qualified Tuition Plan, or federal financial aid;

d) an Employee or Associate Faculty engages in misconduct that represents a willful disregard for the University's interest or that may be considered severe, in the University's sole and absolute discretion; or

e) if an Eligible Family Member receiving Tuition Benefits under the University's 117 Plan becomes ineligible for any of the reasons specified in Section 3.8 b), c) or d) of the 117 Plan.

For the avoidance of doubt, no violation of paragraph 3.9 by an Employee or an Associate Faculty, or an Eligible Family Member, will cause the Employee or Associate Faculty to be ineligible to receive any applicable fee discount offered under this Plan for Professional Development Courses.

3.10 It is intended that the Educational Assistance Benefits provided under this Plan shall be nontaxable benefits that are excludable from Employees' and Associate Faculty's incomes under Code Section 127 to the greatest extent possible. To the extent that any education-related benefit is excludable under both Code Section 117 and Code Section 127, the benefit will be provided under the Qualified Tuition Plan and not this Plan. For purposes of applying the Code Section 127 limits, the value of the Educational Assistance

Benefits provided by this Plan, excluding Professional Development Courses, will be the amount of the applicable Tuition Allowance provided to the Employee or Associate Faculty.

3.11 The total dollar amount of any Educational Assistance Benefits, excluding Professional Development Courses, provided under this Plan may not exceed the limits set forth in Code Section 127 in any Plan Year.

Article IV
Educational Courses at Non-Company Universities

4.1 An Employee may be reimbursed for a portion of the tuition costs of an undergraduate or graduate class or program at a non-Company university, if all of the following criteria are satisfied:

a) the course or program is not currently offered by the University, unless the Employee's immediate manager, Chief Human Resources Officer, and executive team member overseeing the Employee's current function approves a specific exception;

b) the course or program is relevant to the Employee's current role and/or will enhance professional development; or the Employee is under consideration for a potential future job move into a specific role or type of role and the course or program will enhance the Employee's professional development; and

c) the Employee receives a grade of C or better and submits a grade report with the applicable expense report.

A former Employee whose employment has terminated in accordance with Section 2.8 prior to the date a pre-approved non-Company university course or program was scheduled to commence shall no longer be eligible for reimbursement of tuition costs for such non-Company university course or program.

4.2 Employees who receive reimbursement for classes or programs at a non-Company university must, except as otherwise determined by the University, repay all or a portion of the reimbursement if the Employee voluntarily terminates employment within one year following the completion of the course for which reimbursement had been provided by the University. The amount required to be repaid by an Employee is based on the following schedule:

Termination Date	**Percentage of Reimbursement to be Repaid**
Within six (6) months following the completion of a course for which reimbursement was received	100%
More than six (6) months, but not more than twelve (12) months following the completion of a course for which reimbursement was received	50%
More than twelve (12) months following the completion of a course for which reimbursement was received	0%

4.3 No Educational Assistance Benefits will be provided for courses at non-Company Universities except as set forth in this Article IV. The University may, in its sole and absolute discretion, determine that courses and/or programs taken at certain non-Company universities are not eligible for tuition reimbursement under this Plan. Tuition reimbursement under this Article IV will be considered Educational Assistance Benefits, and the total reimbursement in any Plan Year, when aggregated with other Educational Assistance Benefits provided under this Plan (except for any fee discount offered under this Plan for Professional Development Courses), is limited to the amount permitted to be excluded pursuant to Code Section 127.

ARTICLE V
Participant Responsibilities as a Student

5.1 Participants receiving Educational Assistance Benefits under this Plan have a responsibility to uphold the reputation of the University, and it is expected that all Participants will maintain a professional, competent demeanor with individuals outside the University. By enrolling in education courses, Participants have an opportunity to demonstrate to other students a professional approach to education. Participants should carefully consider the time, cost, and other commitments involved in a formal higher education program. Participants are responsible for complying with the University's Code of Ethics and all University policies.

5.2 Participants receiving Educational Assistance Benefits are fully responsible for all financial obligations incurred in conjunction with their coursework. Any Participant receiving Educational Assistance Benefits who incurs a debt to the University is responsible for the immediate payment of the debt. Failure by a Participant to immediately repay any balance may result in the withholding of payment from the Participant's wages or other income, as agreed to by the Participant in the Tuition Assistance Application, in an amount allowed by law until such time as the debt, including any applicable fees or charges associated with voluntary payroll deductions, is paid in full. Failure to repay any remaining balance may result in the Participant being sued to recover money lost.

Financial accounts found to be past due or outstanding may result in one or all of the following actions:

a) the Participant may not obtain official student transcripts;

b) the Participant's Educational Assistance Benefits under this Plan (except for any fee discount provided under this Plan for Professional Development Courses) or tuition benefits being received pursuant to the Qualified Tuition Plan will be terminated until the account has been made current;

c) the University may accelerate reporting to the credit agencies of the debt the Participant owes to the University; and/or

d) the University may deduct the balance of the account from a Participant's wages. Any associated costs or legal fees will be added to the Participant's outstanding account.

5.3 Delinquent accounts will be referred to the University's collections department.

Participants are not eligible to apply for any Educational Assistance Benefits under this Plan or for tuition benefits under the Qualified Tuition Plan until their account has been cleared, and they have been notified by the appropriate University personnel that they can reapply for Educational Assistance Benefits under this Plan or for tuition benefits under the Qualified Tuition Plan. Additionally, an Employee or Associate Faculty may not enroll in any University course or program until the account has been cleared.

5.4 Participants receiving Educational Assistance Benefits who choose to apply for federal financial aid must disclose the Educational Assistance Benefits, other than any fee discount received for Professional Development Courses, on the appropriate institutional federal financial aid application. Failure to properly report Educational Assistance Benefits may result in the disqualification of the Participant for Educational Assistance Benefits and may include corrective action up to and including termination of the Educational Assistance Benefits, except for any fee discount offered under the Plan for Professional Development Courses. In the event the Participant receives federal financial aid that is in excess of Participant's Direct Costs, any Educational Assistance Benefits, other than any fee discount offered under the Plan for Professional Development Courses, previously approved for Participant under this Plan shall be terminated, and Participant shall be ineligible to apply for Educational Assistance Benefits under this Plan (except for any fee discount offered under this Plan for Professional Development Courses) or tuition benefits under the Qualified Tuition Plan until the next succeeding academic year for which financial aid may be obtained, unless the Plan Administrator, in its sole and absolute discretion, determines otherwise.

5.5 Failure to uphold the procedures outlined in this Plan may result in the termination of Educational Assistance Benefits, except for any fee discount offered under this Plan for Professional Development Courses, or may result in corrective action up to and including termination of employment. In addition, the University reserves the right to elect not to approve a Tuition Assistance Application or to refuse educational services to any Participant based upon excessive Withdrawals from classes, excessive absences, inappropriate behavior in the classroom, and/or outstanding financial balances.

ARTICLE VI
Withdrawals and Course Re-takes

6.1 Participants receiving Educational Assistance Benefits may Withdraw from a course only in the event of clear, definable, and extenuating circumstances. Up to two (2) Withdrawals are allowed per every eight (8) courses. If a Participant exceeds the Withdrawal limit, the Participant is responsible for paying the full cost of the course per the University's Institutional Refund Policy as stated in the Consumer Information Guide and is not eligible for an authorized Withdrawal tuition credit.

6.2 A Participant must pay the full cost of any Course Re-take, based on the tuition rate and fees charged to the general public for such course. A Participant shall not be eligible for Educational Assistance Benefits with respect to a Course Re-take, unless the Plan Administrator, in its sole and absolute discretion, determines otherwise.

ARTICLE VII
Procedures for Applying for Educational Assistance Benefits

7.1 An Employee or Associate Faculty must complete the Tuition Assistance Application in MyHR before they enroll in a course, except that an Employee or Associate Faculty may purchase one or more Professional Development Courses and receive the then-applicable fee discount, if any, without completing a Tuition Assistance Application. After notification of approval, an Employee or Associate Faculty may enroll. A new Tuition Assistance Application is required when an Employee or Associate Faculty changes a program level. A Tuition Assistance Application submitted by an Employee whose employment has terminated in accordance with Section 2.8 may be approved by HR Employee Services without approval by the Participant's former manager.

7.2 The Tuition Assistance Application includes the Participant's authorization for the University to withhold payment from the Participant's wages or other income in conjunction with any financial aid or any other balance incurred by the Participant that has been provided to the Participant to attend courses, and that has not been repaid. Any required withholdings and repayments will be in amounts allowed by law.

7.3 In the event a Participant does not complete at least one (1) course, other than a Professional Development Course, in a 12-month period from the date the Tuition Assistance Application is approved, the approved Tuition Assistance Application will expire as of the last business day of that period. A Participant whose Tuition Assistance Application has expired must complete and resubmit a new Tuition Assistance Application in accordance with Section 7.1 before enrolling in a course. The University may, in its sole and absolute discretion, deny approval of a Tuition Assistance Application submitted by a Participant who has repeatedly caused their Tuition Assistance Application to expire due to incompletion of at least one (1) course in a 12-month period.

ARTICLE VIII
Procedures for Applying for Educational Assistance Benefits for Courses at Non-Company Universities

8.1 An Employee must complete the Request for Tuition Reimbursement Form and provide it to their immediate manager and the business leader. All requests must be submitted for approval to the SVP, CHRO. All approvals must be obtained before the Employee's participation in any class or program.

8.2 To receive tuition reimbursement after completion of a course, an Employee must submit an expense report, a copy of their grade card or certificate of completion, and a copy of the approved Request for Tuition Reimbursement Form. Reimbursement will be made on a per course basis, following receipt of grades and any other required documentation.

8.3 An Employee's expense report must be reviewed and approved by the Employee's manager in accordance with the University's policy (*Travel, Meetings, and Expense Reimbursement*). The approving manager and the Employee assume responsibility for compliance with all University policies.

ARTICLE IX
Limitations on Benefits

9.1 In any Plan Year, a Participant is eligible to receive Educational Assistance Benefits under the Plan up to an amount permitted under Code Section 127. The University will determine the amount of the Educational Assistance Benefits, in its sole and absolute discretion, that may be provided in accordance with applicable law.

9.2 A Participant is not entitled to receive any cash, or any other taxable compensation, that they might otherwise be entitled to receive from the University, in lieu of Educational Assistance Benefits under this Plan.

9.3 The Plan is not intended to discriminate in favor of highly compensated employees (as defined in Code Section 414(q)) as to eligibility to participate in the Plan or distribution of Educational Assistance Benefits, and the Plan will, in all respects, comply with the requirements of Code Sections 127(b)(2) and (3) and the underlying Treasury regulations. If, in the judgment of the Plan Administrator, the operation of the Plan in any Plan Year would result in such discrimination, the Plan Administrator will select and exclude from participation in the Plan such Participants as are necessary to ensure that, in the judgment of the Plan Administrator, the Plan does not discriminate.

9.4 Not more than 5% of the amounts paid or incurred by the University for Educational Assistance Benefits under this Plan for any Plan Year may be provided for the class of individuals who are shareholders or owners (or their spouses or dependents are shareholders or owners), each of whom (on any day of the year) owns more than 5% of the stock or capital or profits interest in the University. For purposes of determining stock ownership, the attribution rules of Code Sec. 1563(d) and (e) (without regard to Code Sec. 1563(e)(3)(C)) apply.

9.5 If any Educational Assistance Benefits under this Plan become taxable, whether as a result of nondiscrimination tests or payment of Educational Assistance Benefits in excess of statutory limits, any income and employment tax withholding owed with respect to the taxable portion of Educational Assistance Benefits will be deducted from a Participant's other compensation in the same calendar year in which the Educational Assistance Benefits are provided.

ARTICLE X
Plan Administrator

10.1 The Plan Administrator has the authority and responsibility to take any reasonable actions necessary to control and manage the operation and administration of this Plan under rules applied on a uniform and nondiscriminatory basis to all Participants, including retaining a third-party administrator to perform administrative services such as recordkeeping, processing reimbursements, and submitting reports. The Plan Administrator makes all determinations regarding the interpretation of the terms and conditions of this Plan. If questions arise concerning the Plan Administrator's decision, the University's Board of Trustees, or their designee, will make the determination.

10.2 The Plan Administrator will give reasonable notice of the availability and terms of the

Plan to Employees and Associate Faculty who are eligible to participate in the Plan.

ARTICLE XI
Miscellaneous

11.1 All Educational Assistance Benefits provided under this Plan will be funded by the University in a manner that the University deems appropriate. Participants are not required or permitted to contribute to the Plan.

11.2 This Plan may be amended or terminated, in whole or in part, at any time or for any reason by the University, provided, however, that any termination or amendment will not affect the right of any Participant to claim a right to Educational Assistance Benefits that were approved prior to the effective date of such termination or amendment. The effective date of the amended and restated plan shall be as of February 7, 2022; provided, however, that Employees and Associate Faculty shall retroactively become eligible to participate in the Plan immediately upon hire effective September 1, 2018.

11.3 The Plan Administrator is responsible for preparing and filing any federal or state information returns required to report any information concerning the Plan.

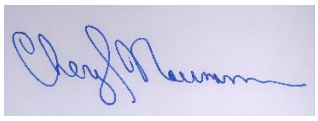
11.4 This Plan does not constitute a contract between the University and any Participant and is not a consideration or an inducement for the employment of any Participant. Nothing contained in this Plan gives any Participant the right to be retained in the service of the University or to interfere with the right of the University to discharge any Participant at any time regardless of the effect that a discharge would have upon them as a Participant covered under this Plan.

11.5 This Plan shall be construed and enforced according to the laws of the State of Arizona, to the extent not preempted by any federal law.

11.6 This document sets forth the entire Plan. Except as provided in this Plan, no other employee benefit plan that is, or may hereafter be, maintained by the University constitutes a part of this Plan. This Plan supersedes all prior tuition and educational assistance plans except the Qualified Tuition Plan.

Adopted by The University of Phoenix, Inc. this 7th day of February 2022.

THE UNIVERSITY OF PHOENIX, INC.



By:
Cheryl Naumann, Chief Human Resources Officer